

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: July 2, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

1

**IN RE THE ESTATE OF TINA THOMPSON, DECEASED
FPR045402**

Status Review/Petition for Final Distribution

PREGRANT ORDER

This matter was continued from February 5, 2026 and March 5, 2026 to allow the petitioner to file a petition for final distribution. Nothing has been filed since the last hearing.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of filing the petition for final distribution.

LINE

2

**IN RE THE ESTATE OF TIMOTHY CALVIN THACKER, DECEASED
FPR051172**

Hearing – Appointment of Solano County Administrator

PREGRANT ORDER

This matter was continued from March 26, 2026 and May 14, 2026 to notify the Solano County Administrator of their possible appointment as administrator of the estate. At the last hearing, the County Administrator requested a continuance to review the file. The court has reviewed the Declaration filed June 29, 2026 in which the Public Administrator requests that they not be appointed under Probate Code section 7666 which does not appear to apply to this case.

Solano County Public Administrator to appear and interested parties may appear via Zoom, in person, or by CourtCall.

LINE

3

**IN RE THE ESTATE OF GREGORY SCOTT HALL, DECEASED
FPR051751**

First and Final Report of Administrator on Waiver of Account and Petition for Allowance of Ordinary and Extraordinary Compensation to Attorney and to Administrator, and For Final Distribution

PREGRANT ORDER

This matter was continued from May 13, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the declaration filed June 8, 2026 and the Proof of Service filed June 26, 2026 which resolved all issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

LINE

4

IN RE THE ESTATE OF JEAN PATRICIA WELKER, DECEASED
PR23-00216

First and Final Accounting Report, Report of Administration, Petition for Administrative and Attorney Compensation, and for Final Distribution of the Estate

PREGRANT ORDER

This matter was continued from January 8, 2026 and May 13, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing one final time to September 9, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 13.b & Schedule 8: The personal representative's attorney seeks \$3,185 in extraordinary attorney fees. The statement provided does not comply with California Rules of Court, rule 7.702, as it does not state the "nature, necessity, success, costs in time, detail of the services performed, and the value of the services believed to warrant the additional fees."
2. Schedule 4: The fee base used does not include the losses on sale as required by Probate Code sections 10800(b) and 10810(b). Additionally, the fee base does not include the amount of the unclaimed property. The real property was appraised at \$455,000, but sold for \$409,000. Court Staff calculates the losses on sale as \$46,000 which makes the statutory compensation \$11,180. The petitioner shall explain why the amount should be different.
3. Schedule 5: The list of costs advanced by the personal representative includes a reimbursement of \$2,260.56 in travel costs. Travel and mileage costs are not reimbursable absent extraordinary circumstances. (Solano County Local Rule, rule 7.72(b)) The petitioner shall explain why the court should not order the petitioner to repay the estate for his reimbursement of his travel expenses without court authorization.

4. Exhibit 1: There is an assignment fee of \$20,000 paid to Dev Patel. This is in addition to payments made to this person on Schedule 6 which totaled \$982.72. The petitioner shall explain who Dev Patel is and why he was paid \$20,982.77 from escrow and by counsel. The petitioner shall explain if Dev Patel was hired by the estate to perform duties that the petitioner was to perform or expert services. The petitioner shall explain why the court should not consider a reduction in any compensation for the petitioner or surcharge him for any losses to the estate.

LINE

5

IN RE THE ESTATE OF MARCUS ALLEN FOX, JR., DECEASED
PR23-00531

Status Report on Administration (Probate Code § 12200)

PREGRANT ORDER

The status report filed April 30, 2026 is approved. The court orders that the estate's administration shall continue through April 30, 2027. Unless a petition for final distribution is on file by April 30, 2027, a second status report shall be filed by April 30, 2027.

The compliance hearing set for July 27, 2026 is re-set to August 3, 2027, at 11:00 a.m. in Department 22.

LINE

6

IN RE THE ESTATE OF ELMET J. BATTISTE, DECEASED
PR24-00153

Petition for Final Distribution on Waiver of Account, Report of Administrator, Waiver of Administrator's Statutory Compensation, Verification

PREGRANT ORDER

This matter was continued from March 18, 2026 and May 7, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to September 9, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 2: Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. Here, letters were issued on July 11, 2024. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by July 11, 2025. No

status report was filed in 2025, and the initial petition for final distribution was dismissed. There is no explanation given for the delays and the failure to resolve the issues with the initial petition for final distribution.

2. Petition, item 18: It is unclear how the petitioner is the sole beneficiary. The decedent was survived by a father who died two years after the decedent and would be the sole heir of the estate. The petitioner shall explain and provide a family tree to show how petitioner is related to the decedent and any other supporting documents for the court's review.

3. The Inventory and Appraisal filed on August 27, 2024 is incomplete. Items 3-5 were not completed.

LINE

7

**IN RE THE ESTATE OF JANE LE BOEUF, DECEASED
PR25-00095**

First and Final Report of Executor on Waiver of Account and Petition for Final Distribution, for Allowance of Statutory Attorney's Fees and Reimbursement of Costs

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

Petitioner to submit a conforming order for the court's review and signature.

LINE

8

**IN THE MATTER OF THE CONSTANTINO CHUA SEPARATE PROPERTY
TRUST DATED JUNE 14, 2019
PR25-00618**

Petition to (1) Remove Trustee for Breach of Trust; (2) Surcharge Trustee; and (3) Compel Return of Trust Property, Cal Prob. Code §850 et al, §15642, §16061.9, §17200, et al.

Response and Objection to Petitioner Margaret Chura Sanchez's Verified Petition For: (1) Removal and Surcharge Pursuant to Probate Code Sections 15642 and 16061.9; (2) Attorney Fees and Costs Pursuant to Welf. & Inst. Code Section 15657.5

PREGRANT ORDER

This matter was continued from November 24, 2025 and May 14, 2026 to allow the parties to negotiate a settlement. At the last hearing, counsel advised the court that the matter was expected to resolve shortly.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The settlement of the matter.

LINE

9

**IN RE THE ESTATE OF MARCEL SALOMON ENCARNACION, DECEASED
PR25-00704**

Report of Administration; Petition for Final Distribution; First and Final Account; Request for Reimbursement of Costs; Request for Payment of Statutory Fees to Administrator; Request for Payment of Statutory Fees to Estate Attorney; and Request for Reserve (Probate Code §§ 10400, 10402, 10810, 10831, 10951, 11004, 11600 THROUGH 11640 - et. seq)

PREGRANT ORDER

The court on its own motion continues this hearing to September 16, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 29: The list of costs advanced by counsel includes a request for reimbursement of \$1.70 in postage paid to mail documents to the Philippines. Postage costs are not reimbursable absent extraordinary circumstances. (Solano County Local Rules, Rule 7.72(b)) What circumstances warrant judicial approval of this expense?
 2. Petition, item 30: The calculation of the statutory compensation states that the fee base is \$1,049,712.45, but it is unclear where that amount came from, as the Inventory value was \$1,055,194.96 and there are no losses on sale which would reduce the Inventory value. The petitioner shall explain.
 3. Petition, item 37: The petition states that the assets on hand equal \$1,000,801.38. This appears to be incorrect. Court Staff calculates that assets on hand are \$1,000,801.38. The petitioner shall explain.
 4. Petition, item 38: The proposed distribution appears to be incorrect. Court Staff calculates the amounts to be distributed as \$500,400.69 to each heir. The petitioner shall explain.
-

LINE

10

**IN RE THE ESTATE OF WILLIS TOMMY THOMAS, JR., DECEASED
PR26-00030**

Notice of Motion and Motion to Be Relieved as Counsel – Civil

PREGRANT ORDER

This matter was continued from May 14, 2026 to allow the petitioner's counsel to file a Motion to be Relieved which was filed May 19, 2026.

The court on its own motion continues this hearing to September 16, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing counsel shall resolve the following issues:

There is no Proof of Service showing that Motion to Be Relieved has been served on the petitioner or the objector as required by Code of Civil Procedure section 285.

LINE

11

**IN THE MATTER OF SUSAN ALICE OSTERGARD
PR26-00065**

First Amended Petition Under Probate Code Section 17200 for Court-Supervised Trust Accounting, Surcharge for Breach of Fiduciary Duty, Order Compelling Trustee to Provide and/or Lodge Complete Copy of Trust, Final Trust Administration and Distribution, Seaside Sale Proceeds, Coleman Pop-Up Tent Trailer, Reimbursement of Taxes, Expenses, Storage, and Labor, Statutory Interest, Costs, and Related Relief

Probate Response (e.g., Notice of Motion Striking Portions of Complaint)

Probate Response (e.g. Notice of Motion to Restate Objection, Amend Accounting, and Dismissal with Prejudice)

PREGRANT ORDER

This matter was continued from March 23, 2026 and May 7, 2026 to allow the court to review the amended petition that was filed too late to be reviewed for the last hearing.

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

12

**IN RE THE ESTATE OF TOSHILO MARY ANN CONTINO, DECEASED
PR26-00071**

Petition for Probate of Lost Will and for Letters of Administration with Will Annexed and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from March 20, 2026 and May 7, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since March 17, 2026 and no appearances have been made at either hearing.

The court dismisses the petition.

LINE

13

**IN THE MATTER OF THE WILLIS THOMAS LIVING TRUST
PR26-00166**

Petition to Return Trust Assets to Trust and Invalidate Trust Based On (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; § 21380)

Objections to the Petition to Return Trust Assets to Trust and Invalidate Trust Based on (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; Probate Code § 21380)

PREGRANT ORDER

This matter was continued from May 11, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Proof of Service filed May 22, 2026 which created a new issue. The court notes the objection filed June 30, 2026.

The court on its own motion continues this hearing to August 19, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

Proof of Service, items 2 and 4: These items are not completed.

LINE

14

**IN RE THE ESTATE OF RICHARD CAHILL, DECEASED
PR26-00169**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from May 11, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the documents filed June 1, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The will of Richard Cahill dated May 22, 2002 is ordered admitted to probate.

The court appoints Joan M. Cahill as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for December 13, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for September 13, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

15

**IN RE THE ESTATE OF JOYCE SJOGREN WALLER, DECEASED
PR26-00184**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from May 13, 2026 to allow the petitioner to address an issue with the petition. The court has reviewed the Proof of Service and Declaration of Due Diligence filed June 16 and 17, 2026 which resolved the outstanding issue.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The will of Joyce Waller dated August 13, 2024 is ordered admitted to probate.

The court appoints Katie Waller as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for December 13, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for September 13, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

16

**IN THE MATTER OF THE ROGER A. WILSON TRUST, DATED
OCTOBER 25, 2017
PR26-00229**

Notice of Motion and Motion to Transfer Venue to Sonoma County Superior Court (Prob. Code § 17005; CCP §§ 396b, 397(a), 397(c))

Respondents' Supplemental Brief re: Venue

Opposition to Motion to Transfer Venue to Sonoma County Superior Court; Declaration of Thomas R. Healy

First Account and Report of Trustee, and Petition for Settlement of Account, Instructions to Trustee, and Approval of Trustee's Fees

Opposition to First Account and Report of Trustee, and Petition for Settlement of Account, Instructions to Trustee, and Approval of Trustee's Fees

PREGRANT ORDER

This matter was continued from May 28, 2026 to allow both petitions to be heard concurrently.

The court on its own motion continues this hearing to August 19, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

As to the First Account and Report:

1. Petition, item 10: The trustee shall explain why she did not marshal the vehicles which belonged to the trust and the basis for her “information and belief” that the objectors agreed to the transfer of the Camaro to Bill Wilson.
2. Petition, item 13: The trustee shall explain how her requested fees of \$54,841.13 complies with California Rules of Court, Rule 7.776 and Solano County Local Rules, Rule 7.101(b) which states in part: “The petition shall provide the asset value of the estate used to calculate compensation and shall explain why that value is appropriately used.”
3. Schedule C: The trustee shall explain why she did not distribute the Lovall Valley Court house to the specified beneficiaries until January 22, 2025 when she distributed the Eureka Avenue house to Bill Wilson on January 23, 2024. The trustee shall explain why it took an extra year to distribute the specific gift.

Opposition to First Account and Report of Trustee:

No issues noted.

As to the Notice of Motion to Transfer Venue:

The moving parties shall explain why the attorney’s office is not a valid place of administration for the purposes of venue.

As to the Opposition to Motion to Transfer Venue:

The Opposition is not signed by the trustee as required by Probate Code section 1020.

LINE

17

**IN THE MATTER OF THE E. LOUISE HAMPTON 2018 TRUST
PR26-00249**

Petition to Confirm the Existence of Trust, To Confirm Property of Trust, and For Imposition of Constructive Trust [Probate Code §17200(a), (b)(4) and (b)(10); Probate Code §850

Interested Person Regina Meyer’s Limited Response and Request for Case Management, Asset Preservation, Accounting, and Administrative Orders

Interested Person Regina Meyer's Objection to Respondents /Petitioners' Petition to Confirm Existence of Trust, to Confirm Property of Trust, and for Imposition of

Constructive Trust; Memorandum of Points and Authorities; Request for Asset Preservation, Accounting, Document Production, and Case Management Orders

PREGRANT ORDER

This matter was continued from June 8, 2026 to allow the objector to file her written objection no later than June 25, 2026. The court notes that the objection was filed on June 17, 2026 and a second objection was filed June 25, 2026. The petitioners filed the correct Notice of Hearing on June 8, 2026. The court notes that a Motion to Quash Subpoena was filed June 23, 2026 which is set for hearing on August 8, 2026.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Whether the parties are agreeable to participating in court-sponsored mediation.

LINE 18 **IN THE MATTER OF THE WILSON FAMILY TRUST UNDER DECLARATION OF TRUST DATD JUNE 13, 2000**
PR26-00250

Trustee's Petition for Instruction, Approval of Accounting, Approval of Distribution Plan and Trustee's Fees. [Cal. Prob. Code §§17200(b)(5) and (9), 17206, 21122, 16004, 16464]

Objection and Response to Trustee's Petition for Instruction, Approval of Accounting, Approval of Distribution Plan, Trustee's Fees, Reserve, Discharge, and Exoneration

Reply to Objection and Response to Trustee's Petition for Instruction, Approval of Accounting, Approval of Distribution Plan, Trustee's Fees, Reserve, Discharge, and Exoneration

PREGRANT ORDER

This matter was continued from June 4, 2026 to allow the objectors to file a written objection. The court has reviewed the objection and the reply.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Whether the parties would agree to participate in court-sponsored mediation.

LINE 19 **IN THE MATTER OF LOUISE HAMPTON**
PR26-00274

Verified Petition to:

1. Invalidate December 14, 2023 Trust Amendment and Pour-Over Will (Probate Code §§ 17200, 6100.5, 86)
2. Remove Trustees and Suspend Trustee Powers (Probate Code §§ 15642, 17200(b)(10), 17206); Code Civ. Proc. §§ 526, 527
3. Compel Accounting and Production of Trust Information (Probate Code §§ 16060, 16062, 17200(b)(7)-(8))
4. Surcharge and Recover Estate/Trust Property (Including Double Damages) (Probate Code §§ 16420, 850, 859)
5. For Financial Elder Abuse (Welfare & Institutions Code § 15610.30)

PREGRANT ORDER

The court ordered that all documents must be filed in the lead case PR26-00249 In re the Matter of E. Louise Hampton 2018 Trust.

The court on its own motion continues this hearing to August 13, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

There is no Proof of Service showing that the petition and the numerous declarations were served per Probate Code section 17203. Additionally, these documents must be filed in the lead case PR26-00249.

LINE

20

**IN RE THE ESTATE OF MARGARET ELIZABETH DUNNING, DECEASED
PR26-00285**

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The decedent died in February 2024 and the maximum value when decedent died on or after April 1, 2022, and before April 1, 2025, was \$184,500. The attached Inventory shows the value of the decedent's residence as \$622,000.00.

The court dismisses this petition as the value exceeds the maximum dollar values of a decedent's estate.

LINE

21

**IN RE THE ESTATE OF DENNEE CHRISTINE LABBEE, DECEASED
PR26-00292**

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.
